

SFIO vs. Adarsh Build Estate

Present: Shri Karan Singh, Advocate for the applicant/accused Jainum Rathod.

File taken up today on the application moved on behalf of the applicant/accused Jainum Rathod for furnishing bail bond and surety bond being Link Judge as Shri Phalit Sharma, Learned Additional Sessions, Gurugram is on leave. Alongwith the application, copy of order dated 18.04.2022 passed by Hon'ble Supreme Court in Criminal Appeal No. 640 of 2022 (Arising from SLP (Crl.) NO. 1554 of 2022) is also filed by the applicant/accused, vide which the applicant/accused Jainum Rathod in complaint case lodged on 18 May 2019 before the Special Judge under the Companies Act 2013 (*as per para no.3 of the order of Hon'ble Supreme Court*), has been ordered to be released on bail. The said order has been duly confirmed through Ahlmad of this Court.

Since, the applicant/accused has been ordered to be released on bail on his furnishing bail bonds to the satisfaction of this court, vide order dated 18.04.2022, passed by Hon'ble Supreme Court in Criminal Appeal No. 640 of 2022 (Arising from SLP (Crl.) NO. 1554 of 2022) and the said order has duly been confirmed through the Ahlmad of this Court, therefore, the applicant-accused is ordered to be released on bail on his furnishing bail bond in the sum of Rs. one lac with one surety in the like amount to the satisfaction of this Court. Requisite bonds furnished. Surety bond is accepted and attested. Personal bonds of the accused Jainum Rathod are accepted and to be attested at jail gate. Release order of accused be issued forthwith. Now, file be put up on 07.05.2022, the date already fixed.

A copy of this order alongwith the copy of the FDR furnished in surety be forwarded to the Bank Manager, Bank of India, Branch Connaught Circus with a direction that the FDR in question be not encashed without the court order as the abovesaid FDR has been furnished as surety of the accused in the present case. File be sent back to the Court concerned forthwith.

Date of order : 20.04.2022.

Neeru SG-II

(Jasbir Singh)
Link/Additional Sessions Judge,
Gurugram. (UID No.HR0130).